

estate merely, the equitable interest, or so much of it as is left undisposed of, will result, if arising out of the settlor's realty, to himself, or his heir, and, if out of personal estate, to himself or his executor.

Pick. 238; *Foot v. Bryant*, 47 N. Y. 544; *Judd v. Moseley*, 30 Ia. 423; *Smith v. Sackett*, 5 Gilm. 544; *Ross v. Hegeman*, 2 Edw. Ch. 373; *Osborne v. Endicott*, 6 Cal. 149; excepted by statutes in most states, but not necessary; *Hoxie v. Carr*, 1 Sumn. 187; a parol trust accompanied by nothing to create a resulting trust falls within the statute; *Smith v. Hollenback*, 51 Ill. 223. Where a trust arises in favor of one paying the purchase-price parol is admissible to establish the facts necessary to create it or the transactions out of which it results; *Rhea v. Tucker*, 56 Ala. 450; *Baker v. Vining*, 30 Me. 126; *Smith v. Patton*, 12 W. Va. 541; *Miller v. Blose*, 30 Gratt. 744; *Witts v. Hooney*, 59 Md. 584; *Irwin v. Ivers*, 7 Ind. 308; 63 Am. Dec. 421; *Smitheal v. Gray*, 1 Humph. 491; 34 Am. Dec. 664; see *Rose v. Gibson*, 71 Ala. 35; a person claiming a trust in his favor, by parol may prove payment by himself, although the deed recites payment by the grantee; *Livermore v. Aldrich*, 5 Cush. 435; *Bayles v. Baxter*, 22 Cal. 575; *De-peyster v. Gould*, 2 Green Ch. 474; though, by fraud or mistake, the holder of the legal title claims that he holds it for the grantor, or some one else, or a sworn answer denies the facts, yet parol is admissible in opposition; *Hanson v. Church*, 1 Stockt. 441; *Cotton v. Wood*, 25 Ia. 43; *Boyd v. M'Lean*, 1 John. Ch. 582; *Moore v. Moore*, 38 N. H. 382; *Letcher v. Letcher*, 4 J. J. Marsh, 590; even after the death of the nominal purchaser; *Williams v. Hollingsworth*, 1 Strob. Eq. 103; 47 Am. Dec. 527; *Freeman v. Kelly*, 1 Hoff. 98; *Dudley v. Bosworth*, 10 Humph. 9; but all the facts must be clearly set out in the bill; *Rowell v. Freese*, 23 Me. 182; *Hickey v. Young*, 1 J. J. Marsh, 1. Parol evidence must be full, clear, convincing, and leave no room for doubt; *Whitmore v. Learned*, 70 Me. 276; *Parker v. Snyder*, 31 N. J. Eq. 164; *Thomas v. Standiford*, 49 Md. 181; *Hyden v. Hyden*, 6 Baxt. 406; *Lee v. Browder*, 51 Ala. 288; *Agricultural Asso. v. Brewster*, 51 Tex. 257; *Boyd v. M'Lean*, 1 Johns. Ch. 582; *Rogers v. Rogers*, 87 Mo. 257; *Green v. Dietrich*, 114 Ill. 636; *Laughlin v. Mitchell*, 14 Fed. Rep. 382; *Allen v. Withrow*, 110 U. S. 119; *Hollida v. Shoop*, 4 Md. 465; 59 Am. Dec. 88; *Saylor v. Plaine*, 31 Md. 158; evidence of payment by one not the grantee is sufficient; *Connor v. Follansbee*, 59 N. H. 124; controlling fact is the ownership of the purchase-money; *Shaw v. Shaw*, 86 Mo. 594; for cases of quitclaim, see *Gove v. Learoyd*, 140 Mass. 524; *Beadle v. Beadle*, 2 McCrary, C. C. 586; parol declarations of the nominal grantee that another paid the consideration, may be used against him; *Malin v. Malin*, 1 Wend. 626; *Harder v. Harder*, 2 Sandf. 17. The presumption that a resulting trust arises may be rebutted by parol showing that no trust was intended; *Adams v. Guerard*, 29 Ga. 651; 76 Am. Dec. 625; *Steere v. Steere*, 5 Johns. Ch. 19; 9 Am. Dec. 256; *Page v. Page*, 8 N. H. 195; *Carter v. Montgomery*, 2 Tenn. Ch. 216; *Tryon v. Huntoon*, 67 Cal. 325; *Warren v. Steer*, 112 Pa. St. 634; *Hunt v. Moore*, 6 Cush. 1; *Baker v. Vining*, 30 Me. 121; this applies to a part, as well as to the whole, of the subject-matter; *Pinney v. Fellows*, 15 Vt. 525; but a different construction from that intended cannot subsequently be put upon the transaction; *Robles v. Clarke*, 25 Cal. 317; *White v. Sheldon*, 4 Nev. 280.

Parol evidence is inadmissible in the other classes of resulting trusts, as where a conveyance is made in trust for a certain purpose, which is indefinite